

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 07/24/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	19CV359049	Brandon Flora vs Bass Pro Outdoor World, LLC et al.	MOTION TO DISMISS ACTION Please Ctrl click (or scroll down to) Line 1
LINE 2	21CV376210	George Ku et al. vs Harald Herchen	MOTION TO DISQUALIFY PLAINTIFF'S COUNSEL Please Ctrl click (or scroll down to) Line 2
LINES 3-6	24CV453483	Shivan Verma vs Santa Clara Valley Transportation Authority	Motion: Compel Answers x 4 Vacated by moving party
LINE 7	24CV453851	Jason Stean vs Associated Locating, Inc. et al	MOTION TO COMPEL ANSWERS Please Ctrl click (or scroll down to) Line 7
LINE 8	25CV471687	Berkshire Hathaway Homestate Insurance Company vs Andy Le	MOTION TO CONSOLIDATE Please Ctrl click (or scroll down to) Line 8
LINE 9	25CV479556	Francisco Don Velasquez vs Allied Universal Security et al.	DEMURRER Please CTRL click (or scroll down to) Line 9
LINE 10	26CV497944	James Keene vs David Apt. Manager	OSC TRO/Preliminary Injunction The parties are ordered to appear in person or remotely.
9:01	CASE #	CASE TITLE	RULING
Line 1	24CV430720	Capital One N.a. vs Mayra Mendoza	Hearing: Claim of Exemption At the last hearing, claimant was instructed to file supplemental documents. Claimant failed to do so. Accordingly, the claim of exemption is denied. Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-0202 within 7 days of the hearing

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DATE: 07/24/2026 TIME: 9:00 A.M. and 9:01 A.M.

Line 2	24CV442837	Pushpalatha Subbarao vs Sutter Health et al	MOTION TO BE RELIEVED AS COUNSEL Plaintiff's counsel Gregory C. Cattermole, Esq. moves to be Relieved as Counsel for Plaintiff Pushpalatha Subbarao, pursuant to Code of Civil Procedure Section 284(2). The court further notes counsel had appeared on July 10, 2026 (Judge Franco presiding) and the case was continued to January 22, 2027 for Dismissal after Settlement. Counsel are ordered to appear at the July 24, 2026 hearing to clarify whether the Motion to be Relieved as Counsel is still requested or vacated.

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Calendar Line 1**Case Name:** *Brandon Flora v Bass Pro Outdoor World, LLC***Case No.** 19CV359049Defendant Bass Pro Outdoor World, LLC's Motion to Dismiss for Failure to Bring Action to Trial Within Five Years (CCP §§ 583.310, 583.360)

Code of Civil Procedure section 583.310 requires an action to be brought to trial within five years after commencement of the action. Dismissal is mandatory unless the plaintiff establishes that sufficient time is excluded under Code of Civil Procedure section 583.340. (§ 583.360.) Plaintiff bears the burden of establishing that bringing the action to trial was impossible, impracticable, or futile within the meaning of section 583.340, subdivision (c). (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The parties agree that, after application of Judicial Council Emergency Rule 10, the operative deadline to bring this action to trial was May 26, 2025. The dispute is whether additional time should be excluded pursuant to section 583.340(c).

The Court recognizes that Plaintiff's prosecution of this action was not exemplary. Plaintiff did not aggressively pursue affirmative discovery, nor did Plaintiff obtain a trial date before expiration of the statutory period. These facts weigh in favor of dismissal. However, the inquiry is not limited to whether Plaintiff could have prosecuted the case more expeditiously. Rather, the Court must consider "all the circumstances in the individual case, including the acts and conduct of the parties," with the critical inquiry being whether Plaintiff exercised reasonable diligence under the circumstances. (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081, 1100.)

Considering the totality of the circumstances, the Court concludes Plaintiff has met that burden.

The record reflects that Plaintiff actively participated in the litigation by responding to written discovery, appearing for deposition, submitting to an independent medical examination, participating in ADR efforts, and appearing at case management proceedings. Although Plaintiff did not serve significant affirmative discovery until later in the litigation, the record does not establish that Plaintiff abandoned or failed to prosecute the action altogether.

The Court further finds that Plaintiff has demonstrated periods during which bringing the matter to trial was impracticable within the meaning of section 583.340(c). Counsel submitted evidence of extraordinary circumstances, including serious family medical emergencies, a premature birth, a federally declared natural disaster, and repeated criminal trial obligations entitled to statutory priority. The Court finds these circumstances materially distinguish this case from ordinary scheduling conflicts and constitute circumstances beyond Plaintiff's reasonable control.

The Court also considers Defendant's conduct. The record reflects Defendant failed to appear at multiple scheduled court proceedings over several years, resulting in the Court issuing an Order to Show Cause regarding Defendant's failure to appear. Defendant also identified

extensive periods of trial unavailability due to other trial commitments. Under *Gaines*, the conduct of both parties is relevant in evaluating reasonable diligence and whether bringing the matter to trial was impracticable.

After weighing all of the circumstances, the Court concludes Plaintiff has demonstrated sufficient periods during which bringing the matter to trial was impracticable under section 583.340(c). Accordingly, the time excluded under that statute extends the applicable deadline beyond the date on which this matter was ultimately set for trial. Mandatory dismissal under sections 583.310 and 583.360 therefore is not warranted.

The Court does not reach Plaintiff's alternative estoppel argument because the motion is resolved under section 583.340(c).

Accordingly, the motion is DENIED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

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Calendar Line 2

Case Name: *Ku, et al. v. Herchen, et al.*

Case No.: 21CV376210

DEFENDANT'S MOTION TO DISQUALIFY PLAINTIFFS' COUNSEL

I. Standing

As a threshold matter, Plaintiffs argue Defendant lacks standing because neither Defendant nor Kim Ngo was ever a client of Farling, Hecht & Davis LLP ("FHD").

California courts recognize that a standing requirement is implicit in attorney disqualification motions. Generally, only a current or former client whose own legally protected interests are affected may seek disqualification. (*Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356-1357.) The standing requirement exists to prevent the Rules of Professional Conduct from becoming tactical litigation weapons. As the Court of Appeal explained:

"The nonclient must show an invasion of a legally protected interest which is concrete and particularized.... A broad interest in the administration of justice is insufficient." (*Great Lakes*, supra, 186 Cal.App.4th at pp. 1357-1358.)

Defendant was never represented by FHD. Moreover, the alleged conflict arises from FHD's temporary representation of Kim Ngo in an unrelated automobile insurance matter. Ngo was never a party to the underlying wrongful death action in which judgment has already been entered. Defendant has not demonstrated how that representation invaded any legally protected interest belonging to him rather than asserting only a generalized concern regarding the integrity of the proceedings.

Although California recognizes a narrow exception where an ethical violation is so "manifest and glaring" that it infects the litigation itself (*Kennedy v. Eldridge* (2011) 201 Cal.App.4th 1197, 1204), the Court concludes Defendant has not made that showing here. The asserted conflict does not involve Defendant's confidential information, his attorney-client relationship, or representation adverse to Defendant himself. Rather, Defendant seeks to invoke an ethical issue arising from the representation of a third party in an unrelated matter after judgment had already been entered.

Accordingly, Defendant's standing to seek disqualification is, at best, doubtful. Even assuming Defendant has standing, the court analyzes on the merits.

II. FHD

There is no dispute that FHD represented Plaintiffs in this litigation for several years before David Farling undertook the representation of Kim Ngo in an unrelated automobile insurance claim in November 2025.

Nor does the Court minimize the duty of loyalty imposed by Rule 1.7 of the California Rules of Professional Conduct. California has long recognized that simultaneous representation of clients with directly adverse interests ordinarily presents a serious ethical violation. (*Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284-289.)

The present case, however, is materially distinguishable from the typical concurrent representation cases.

The undisputed evidence demonstrates the conflict was not knowingly undertaken. Rather, FHD has presented evidence that:

- Ngo retained David Farling under a different variation of her name;
- she provided a different residence;
- the representation involved an unrelated automobile insurance matter handled by a different partner in a separate practice;
- FHD maintained conflict-check procedures which failed only because of those discrepancies; and
- upon discovering the conflict, FHD immediately terminated the representation and transferred the matter to successor counsel.

Truck Insurance Exchange v. Fireman's Fund Insurance Co. (1992) 6 Cal.App.4th 1050 recognizes that not every conflict arises because counsel knowingly accepted an adverse representation. The Court of Appeal distinguished the ordinary concurrent representation case from circumstances in which a conflict is thrust upon counsel through the “mere happenstance of an unseen concurrent adverse representation” occurring through no fault of the attorney.

Unlike *Flatt*, this is not a case in which counsel knowingly accepted representation directly adverse to an existing client or strategically abandoned one client in favor of another. The record instead supports the conclusion that the conflict was inadvertently created despite reasonable conflict-check procedures and was promptly cured immediately upon discovery.

Equally significant, Defendant has failed to demonstrate any prejudice resulting from the temporary concurrent representation. The automobile insurance representation was unrelated to the wrongful death litigation or judgment enforcement proceedings. Defendant has identified no confidential information obtained from Ngo that bears upon the issues presented in this litigation, and no evidence that any confidential information was communicated to attorneys prosecuting Plaintiffs' claims.

While protection of client loyalty remains paramount, disqualification is not imposed as punishment for every ethical lapse. Rather, “[t]he important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.” (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145.) At the same time, disqualification remains an equitable remedy committed to the sound discretion of the trial court. (*Kirk v. First American Title Insurance Co.* (2010) 183 Cal.App.4th 776, 792.)

The Court also considers the substantial prejudice disqualification would impose upon Plaintiffs. FHD has represented Plaintiffs since the inception of this litigation, through years of

discovery, motion practice, trial, and ultimately a \$23.6 million judgment. Ngo has never been a party to that action. FHD has already withdrawn from both the automobile insurance matter and the related UVTA action in which Ngo was named as a defendant.

Under these unique circumstances, the Court concludes that disqualification would be a disproportionate remedy. The conflict was inadvertent, promptly remedied, unrelated to the subject matter of Ngo's representation, unsupported by any showing that confidential information was obtained or misused, and would work substantial prejudice upon Plaintiffs while providing little corresponding benefit to the integrity of these proceedings.

Accordingly, the motion to disqualify FHD is DENIED.

III. Draa, Lapcevic & Stockwell LLP

The motion is likewise denied as to Draa, Lapcevic & Stockwell LLP ("DLS").

California recognizes automatic imputation of conflicts among attorneys practicing within the same firm and, in appropriate circumstances, attorneys functioning as a single de facto firm through an "of counsel" relationship. (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1153-1155; *Sands & Associates v. Juknavorian* (2012) 209 Cal.App.4th 1269, 1292-1293.)

Here, however, Defendant has produced no evidence that DLS and FHD operated as a single law firm, maintained an "of counsel" relationship, shared computer systems, or exchanged confidential information concerning Ngo's automobile insurance matter. The evidence instead establishes that the firms maintained separate practices and separate systems, and Defendant offers only speculation that confidential information may have been shared.

Ordinary cooperation between co-counsel in litigation, standing alone, does not justify vicarious disqualification.

Accordingly, the motion to disqualify DLS is likewise DENIED.

DISPOSITION:

The motion to disqualify Farling, Hecht & Davis LLP and Draa, Lapcevic & Stockwell LLP is DENIED.

Plaintiffs to prepare the final proposed order and submit with the necessary EFS-020 within 7 days of the hearing.

Calendar line 7

Case Name: *Jason Sean v. Associated Plumbing, Inc.*

Case No.: 24CV453851

PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES

Plaintiff’s motion to compel further responses to Requests for Production Nos. 7 and 52 seek production of a recorded statement given by Defendant Associated Plumbing’s CEO, Timothy Gorshe, to Defendant’s liability insurer, Federated Insurance, on May 23, 2023.

Defendant objects on the grounds that the recording is protected by the attorney-client privilege and attorney work product doctrine. Defendant submits declarations establishing that the statement was given confidentially and for the purpose of assisting Federated Insurance in evaluating and defending the anticipated claim arising from the incident.

Attorney-Client Privilege

The attorney-client privilege protects confidential communications between a client and lawyer made for the purpose of obtaining or providing legal advice. (Evid. Code, § 954.) In the insurer-insured context, California follows the “prevailing rule” that communications by an insured to a liability insurer may be privileged where the insurer has a duty to defend and the communication is intended for the information or assistance of counsel in defending the insured. (*Travelers Ins. Companies v. Superior Court* (1983) 143 Cal.App.3d 436, 448–449; *Gene Compton’s Corp. v. Superior Court* (1962) 205 Cal.App.2d 365, 379.)

Where a communication has both business and legal purposes, the Court examines the dominant purpose of the communication. (*Holm v. Superior Court* (1954) 42 Cal.2d 500, 507.)

Defendant relies on *Soltani-Rastegar v. Superior Court* (1989) 208 Cal.App.3d 424. There, the Court of Appeal held that an insured’s statement to a liability insurer was privileged even though litigation had not yet been filed and defense counsel had not yet been retained. The court concluded that the absence of filed litigation or retained counsel did not defeat the privilege where the dominant purpose of the communication was to assist in defending against the anticipated claim.

Plaintiff argues the recording was merely part of Federated’s ordinary claims investigation and relies on *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214, for the proposition that factual statements obtained during an investigation are not necessarily protected work product.

The Court finds *Nacht & Lewis* distinguishable. That case concerned independently prepared witness statements and did not address a communication by an insured to its liability insurer concerning an identified claim for which the insurer had a duty to defend.

Here, the circumstances support Defendant’s showing that the dominant purpose of the recorded statement was preparation for defense of the anticipated claim. Plaintiff’s counsel had already sent a Notice of Representation and Demand to Preserve Evidence before the statement was taken. Thus, at the time of the interview, Federated was not merely investigating an

unknown occurrence; it was evaluating a claim involving a represented claimant and anticipated litigation. Defendant's declarations further establish that the communication was confidential and intended to assist in the defense of the claim.

Accordingly, Defendant has established that the recorded statement is protected by the attorney-client privilege.

Work Product Doctrine

The Court further finds the recording protected by the attorney work product doctrine.

The work product doctrine protects materials prepared by a party or its agent in anticipation of litigation. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 494–496.) Although witness statements are not categorically protected, *Coito* recognizes that statements obtained by an attorney or an attorney's agent in anticipation of litigation may qualify for protection.

The recorded statement was obtained after Plaintiff had retained counsel, asserted a claim, and demanded preservation of evidence. Federated obtained the statement while evaluating and preparing for potential litigation involving its insured. Plaintiff has not demonstrated a basis to overcome that protection.

Disposition

Because Defendant has established that the recorded statement was a confidential communication made for the purpose of assisting in the defense of an anticipated claim, and because the statement was obtained under circumstances supporting work product protection, the recording is protected from disclosure.

Accordingly, Plaintiff's motion to compel further responses to Requests for Production Nos. 7 and 52 is DENIED.

Defendant to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

Calendar Line 8

Case Name: *Berkshire Hathaway Homestate Insurance Company v. Andy Le*

Case No.: 25CV471687

PLAINTIFF'S MOTION TO RELATE & CONSOLIDATE

No opposition received. Good cause appearing, Plaintiff's motion is GRANTED.

Discussion

This action arises from a motor vehicle collision that allegedly occurred on September 8, 2023. Plaintiff Berkshire Hathaway Homestate Companies ("BHHC"), the workers' compensation carrier for Plaintiff Camacho's employer, seeks recovery against Defendant Andy Le pursuant to Labor Code section 3852 for workers' compensation benefits paid and to be paid as a result of injuries allegedly caused by the collision.

Separately, Camacho filed a personal injury action against the same defendants arising from the same incident, *Camacho v. Le, et al.*, Santa Clara County Superior Court Case No. 25CV472800. Both actions remain pending, discovery is ongoing, and no trial date has been set in either matter. No opposition to the present motion has been filed.

Labor Code section 3853 governs situations in which both an injured employee and the employer or workers' compensation carrier prosecute separate actions against the same third-party tortfeasor. The statute provides that where separate actions are brought before trial, they "shall" be consolidated. The purpose of the statute is to ensure that the respective rights of the employee and employer or carrier are adjudicated in a single proceeding, thereby avoiding multiple actions arising from the same injury and preventing inconsistent determinations concerning liability and damages.

The statutory prerequisites are satisfied here. BHHC and Camacho have filed separate actions against the same defendants arising from the same September 8, 2023 motor vehicle collision, and both actions remain pending before trial. Accordingly, consolidation is required under Labor Code section 3853.

Consolidation is also appropriate under Code of Civil Procedure section 1048. The two actions present common questions of law and fact, including the circumstances of the accident, Defendants' alleged negligence, comparative fault, causation, the extent to which the accident aggravated Plaintiff Camacho's preexisting injuries, and the damages attributable to the collision. Separate proceedings would require substantially duplicative discovery, witness testimony, and expert evidence, and would create an unnecessary risk of inconsistent findings on issues common to both cases. Consolidation will promote judicial economy and avoid unnecessary costs and delay. The Court finds no apparent prejudice to any party, particularly where discovery remains ongoing, no trial date has been set, and the motion is unopposed.

Accordingly, Plaintiff's motion is GRANTED.

Order

1. This action is consolidated with Camacho v. Le, et al., Santa Clara County Superior Court Case No. 25CV472800, for all purposes pursuant to Labor Code section 3853 and, alternatively, Code of Civil Procedure section 1048.
2. The lower-numbered case, Case No. 25CV471687 shall be the lead
3. All future filings shall bear the lead case number and shall identify the consolidated actions in the caption.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020, within 7 days of the hearing.

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Calendar Line 9

Case Name: *Francisco Don Velasquez v. Allied Universal Security, et al.*

Case No.: 25-CV-479556

DEFENDANT’S DEMURRER TO THE COMPLAINT

Factual and Procedural Background

This is an employment action brought by plaintiff Francisco Don Velasquez (“Plaintiff”), a self-represented litigant, against defendants Allied Universal Security (“Allied”) and Stanford Health Care (“SHC”) (collectively, “Defendants”).

On November 12, 2025, Plaintiff filed the operative judicial council form complaint against Defendants alleging causes of action including wrongful termination, retaliation, and failure to accommodate.

On January 26, 2026, defendant SHC filed the motion presently before the court, a demurrer to the complaint. Plaintiff filed written opposition. SHC filed reply papers.

A case management conference is also scheduled for July 24, 2026.

Plaintiff’s motion for leave to file a first amended complaint (“FAC”) is set for hearing on December 4, 2026.

Self-Represented Litigants

Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Super. Ct.* (2009) 175 Cal.App.4th 536, 543; see also *Burnete v. La Casa Dana Apartments* (2007) 148 Cal.App.4th 1262, 1270 [“self-represented litigants are generally entitled to no special treatment”].) “[M]ere self-representation is not a ground for exceptionally lenient treatment.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Otherwise, “exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation.” (*Id.* at p. 985.)

Analysis

Defendant SHC argues the complaint is subject to demurrer for failure to state a valid claim. (Code Civ. Proc., § 430.10, subd. (e).)

“ ‘The absence of any allegation essential to a cause of action renders it vulnerable to a general demurrer. A ruling on a general demurrer is thus a method of deciding the merits of the cause of action on assumed facts without a trial.’ [Citation.] ‘Conversely, a general demurrer will be overruled if the complaint contains allegations of every fact essential to the statement of a cause of action, regardless of mistaken theory or imperfections of form that make it subject to special demurrer.’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 291-292 (*Morris*).)

“A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ [citation] and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.”

' [Citation.] '[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.' [Citation.]" (*Morris, supra*, 78 Cal.App.5th at p. 292.)

In addition, "Judicial Council form complaints are not invulnerable to a demurrer. Conversely, Judicial Council form complaints do not always fail to state a cause of action and, thus, they are not necessarily susceptible to demurrer. The logical implication from these polar opposite principles is that use of a Judicial Council form complaint is not a determinative factor in deciding whether or not to sustain a demurrer. Instead, a reviewing court must examine the particular allegations in the form pleading and determine whether those allegations satisfy the pleading requirements established by California law." (*Esparza v. Kaweah Delta Dist. Hospital* (2016) 3 Cal.App.5th 547, 555.)

Here, the particular allegations in the operative form pleading allege causes of action for wrongful termination, retaliation, and failure to accommodate. The form complaint however does not allege facts to state a cause of action under any of these theories against defendant SHC.

Also, while the allegations of a complaint must be accepted as true for purposes of demurrer, the facts appearing in exhibits attached to the complaint will also be accepted as true, and, if contrary to the allegations in the pleading, will be given precedence. (*Brakke v. Economic Concepts, Inc.* (2013) 213 Cal.App.4th 761, 767.)

The operative complaint attaches various exhibits including Plaintiff's amended complaint of discrimination filed with the Civil Rights Department which provides in relevant part that:

- Defendant Allied was Plaintiff's employer;
- On April 23, 2025, Allied: (1) harassed Plaintiff because of his disability; (2) discriminated against Plaintiff because of other protected characteristics; and (3) retaliated against Plaintiff because he requested or used a religious accommodation.

The aforementioned amended complaint of discrimination, attached as an exhibit, also includes a summary of evidence and chronological timeline of events. There is also a section titled "Summary of Legal Violations" which appears to set forth causes of action including:

- Wrongful Termination in Violation of Public Policy;
- Religious Discrimination and Failure to Accommodate;
- Retaliation for Protected Activity;
- Failure to Provide Statutory Notice of Separation;
- Negligent Administration and Payroll Management;
- Failure to Maintain Personnel Records;
- Constructive Discharge/Hostile Environment.

But, neither the amended complaint of discrimination nor the other exhibits attached to the complaint, allege any facts to state a valid cause of action against defendant SHC under these legal theories. Notably, as pointed out in the moving papers, Plaintiff must plead an employer/employee relationship with SHC to state a valid claim under these employment related causes of action. (See *Vernon v. State of California* (2004) 116 Cal.App.4th 114, 123

[“The fundamental foundation for [FEHA] liability is the ‘existence of an *employment* relationship between the one who discriminates against another and that other who finds himself the victim of that discrimination.’ ”]; *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 900 [“[A] *Tameny* action for wrongful discharge can only be asserted against an *employer*. An individual who is not an employer cannot commit the tort of wrongful discharge in violation of public policy...”]; *Aleksick v. 7-Eleven, Inc.* (2012) 205 Cal.App.4th 1176, 1180 [“the Labor Code wage statutes govern the employee-employer relationship”]; see also *Atalla v. Rite Aid Corp.* (2023) 89 Cal.App.5th 294, 319-320 [employment relationship required for constructive discharge claim].) The operative pleading however *only* alleges an employment relationship between Plaintiff and defendant Allied thus failing to state a valid claim for relief.

In opposition, Plaintiff concedes he was employed by defendant Allied. Nevertheless, Plaintiff contends defendant SHC should be liable for conduct alleged in the complaint because: (1) Plaintiff was assigned to work at SHC’s facilities; (2) SHC exercised authority over Plaintiff’s continued ability to work at its facilities; (3) SHC enforced policies that led to Plaintiff’s removal from his longstanding assignment; and (4) SHC participated in events giving rise to Plaintiff’s claims. But, these contentions are not set forth in the complaint in support of Plaintiff’s claims. Nor does Plaintiff cite any legal authority showing that these contentions would, in the absence of an employer-employee relationship, be able to state a valid claim against SHC. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [“The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived.”]; *United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt]; see also *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].) The court therefore finds the demurrer is sustainable on this ground.

As this is the first challenge to the pleadings, the court will provide Plaintiff an opportunity for leave to amend. (See *City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [if the plaintiff has not had an opportunity to amend the pleading in response to a motion challenging the sufficiency of the allegations, leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment].) Should defendant SHC take issue with Plaintiff’s amended complaint, it may file the appropriate pleading motion for demurrer, motion for judgment on the pleadings (after the filing of an answer), or dispositive motion for summary judgment or summary adjudication based on admissible evidence.

Consequently, the demurrer to the complaint is SUSTAINED WITH 15 DAYS’ LEAVE TO AMEND on the ground that the pleading fails to state a cause of action.

Disposition

The demurrer to the complaint is SUSTAINED WITH 15 DAYS LEAVE TO AMEND for failure to state a valid claim.

Plaintiff’s motion for leave to file a FAC, set for hearing on December 4, 2026, is hereby VACATED.

The court will prepare the Order.

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